

Central Valley Regional Water Quality Control Board

13 March 2019

Daniel Vang, Special Districts Administrator
Fresno County
Public Works and Planning
2220 Tulare Street, 6th Floor
Fresno, CA 93721

CERTIFIED MAIL
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NOTICE OF APPLICABILITY (NOA); STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ-R5305; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; FRESNO COUNTY SERVICE AREA #30; EL PORVENIR WASTEWATER TREATMENT FACILITY; FRESNO COUNTY

On 7 December 2009, Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff received a Report of Waste Discharge (RWD) from Fresno County Service Area #30 (Discharger) to address upgrades made at its El Porvenir Wastewater Treatment Facility (WWTF), which serves the unincorporated community of El Porvenir in Fresno County. Based on the information provided, the WWTF treats and disposes of less than 100,000 gallons per day (gpd) and is therefore eligible for coverage under the general and specific conditions of the State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). This letter serves as formal notice that the General Order is applicable to your system and the wastewater discharge described below upon the rescission of Waste Discharge Requirements Order 90-262. You are hereby assigned General Order **2014-0153-DWQ-R5305** for your system.

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which describe mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) 2014-0153-DWQ-R5305. This MRP was developed after consideration of your waste characterization and site conditions described in the attached memorandum.

DISCHARGE DESCRIPTION

The El Porvenir WWTF is approximately 13 miles southwest of the City of San Joaquin and 17 miles south of Mendota in Fresno County. This WWTF serves the small unincorporated community of El Porvenir/Three Rocks, which consists of about 56 residences. The WWTF provides treatment of its wastewater consisting of four lined treatment ponds (two aerated ponds and two settling ponds), which can be operated in series or parallel. After treatment, the effluent

is discharged to an unlined disposal pond. In 2012 the disposal pond was divided in half by an internal berm to provide for better management and maintenance of the pond.

The disposal capacity of the WWTF is approximately 44,000 gpd. However, current estimated average daily flows to the WWTF are well below the capacity of the system at 13,700 gpd.

FACILITY SPECIFIC REQUIREMENTS

The Discharger will maintain exclusive control over the discharge and shall comply with the terms and conditions of this NOA, General Order 2014-0153-DWQ, with all attachments, and MRP 2014-0153-DWQ-R5305.

In accordance with Section B.1.a. of the General Order, treated wastewater discharged **shall not exceed 44,000 gpd as a monthly average**. Per the requirements of the General Order, discharges with flow rates greater than 20,000 gpd must be evaluated as described in Attachment 1 of the General Order to determine if nitrogen effluent limits are required. Based on the results of the nitrogen evaluation, as discussed in the attached memorandum, a nitrogen effluent limit is not required at this time.

The General Order states in Section B.1.I that the Discharger shall comply with the setbacks as described in Table 3. This table summarizes different setback requirements for wastewater system equipment, activities, land application areas, and storage and/or treatment ponds from sensitive receptors and property lines where applicable. The Discharger shall comply with the applicable setback requirements, as summarized in the following table:

Site Specific Applicable Setback Requirements			
Equipment or Activity	Domestic Well	Flowing Stream¹	Property Line
Impoundment (undisinfected secondary recycled water) ²	150 ft. ³	150 ft.	50 ft.

¹. A flowing stream shall be measured from the ordinary high water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation type, presence of litter or debris, or other appropriate means.

². Undisinfected secondary recycled water is defined in California Code of Regulations, title 22, section 60301.900.

³. Setback established by California Code of Regulations, title 22, section 60310(d).

The Discharger shall comply with all applicable sections in the General Order, including:

- a. Aerobic Treatment Unit requirements specified in Section B.3 of the General Order; and
- b. Pond system requirements specified in Section B.5 of the General Order.

As discussed in the attached memorandum, the *Water Quality Control Plan for the Tulare Lake Basin*, Third Edition, revised May 2018 (Tulare Lake Basin Plan) includes more stringent effluent limitations for biochemical oxygen demand (BOD) for discharges of domestic wastewater to land. Therefore, this NOA includes the effluent limitations required by the Tulare Lake Basin Plan for BOD for advanced primary treatment.

The Discharger shall not exceed the following effluent limitation for BOD (as specified in the Tulare Lake Basin Plan):

Effluent Limitations for the Wastewater Treatment System¹		
Wastewater Pond of Trickling Filter (not including residential recirculating sand filters)		
Constituent	Units	Limit
BOD	mg/L	70 (monthly average ²)

BOD denotes biochemical oxygen demand; TSS denotes total suspended solids.

1. The limitations included in this table apply to the treated effluent discharged to the evaporation/percolation ponds (i.e., disposal ponds).
2. The monthly average concentration is the arithmetic mean of measurements recorded during a calendar month. If only one sample is collected in a calendar month, then that sample measurement is the monthly average concentration.

Failure to comply with the requirements in this NOA, General Order 2014-0153-DWQ, with all attachments, and MRP 2014-0153-DWQ-R5305 could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

Provision E.1 of the General Order requires dischargers enrolled under the General Order to prepare and implement the following reports within **90 days** of the issuance of this NOA (by 11 June 2019):

- Spill Prevention and Emergency Response Plan (Provision E.1.a)
- Sampling Analysis Plan (Provision E.1.b)
- Sludge Management Plan (Provision E.1.c)

The General Order requires the Sludge Management Plan to be submitted to the Central Valley Water Board within 90 days of the issuance of this NOA.

As stated in Section E.2.w., in the event any change in control or ownership of the facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board Executive Officer.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

The Central Valley Water Board adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting. These programs, once effective, could change how the Central Valley Water Board permits discharges of salt and nitrate.

The Central Valley Water Board has gone to a Paperless Office System. All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50 MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50 MB or larger should be transferred to a disk and mailed to the Central Valley Water Board office at 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office: Program: Non-15, WDID: 5D100102001, Facility Name: Fresno Cnty #30 El Porvenir WWTF, Place ID: 201073, Order: 2014-0153-DWQ-R5305.

In order to conserve paper and reduce mailing costs, a paper copy of the General Order has been sent only to the Discharger. Others are advised that the General Order is available on the State Water Board's web site at:

http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

Please note that WDRs Order 90-262 is proposed to be rescinded at the **6/7 June 2019** meeting of the Central Valley Water Board. Upon rescission of your individual WDRs, coverage for your facility under the General Order shall become applicable subject to this Notice of Applicability.

If you have any questions regarding this matter, please contact Katie Carpenter by phone at (559) 445-5551 or email at Katie.Carpenter@Waterboards.ca.gov.



for Patrick Pulupa
Executive Officer

Attachments: Attachment A – Site Map
Attachment B – Wastewater Treatment Facility
State Water Resources Control Board Order WQ 2014-0153-DWQ
(Discharger Only)
Monitoring and Reporting Program 2014-0153-DWQ-R5305
Review Memorandum of Fresno County Service Area #30, El Porvenir
Wastewater Treatment Facility

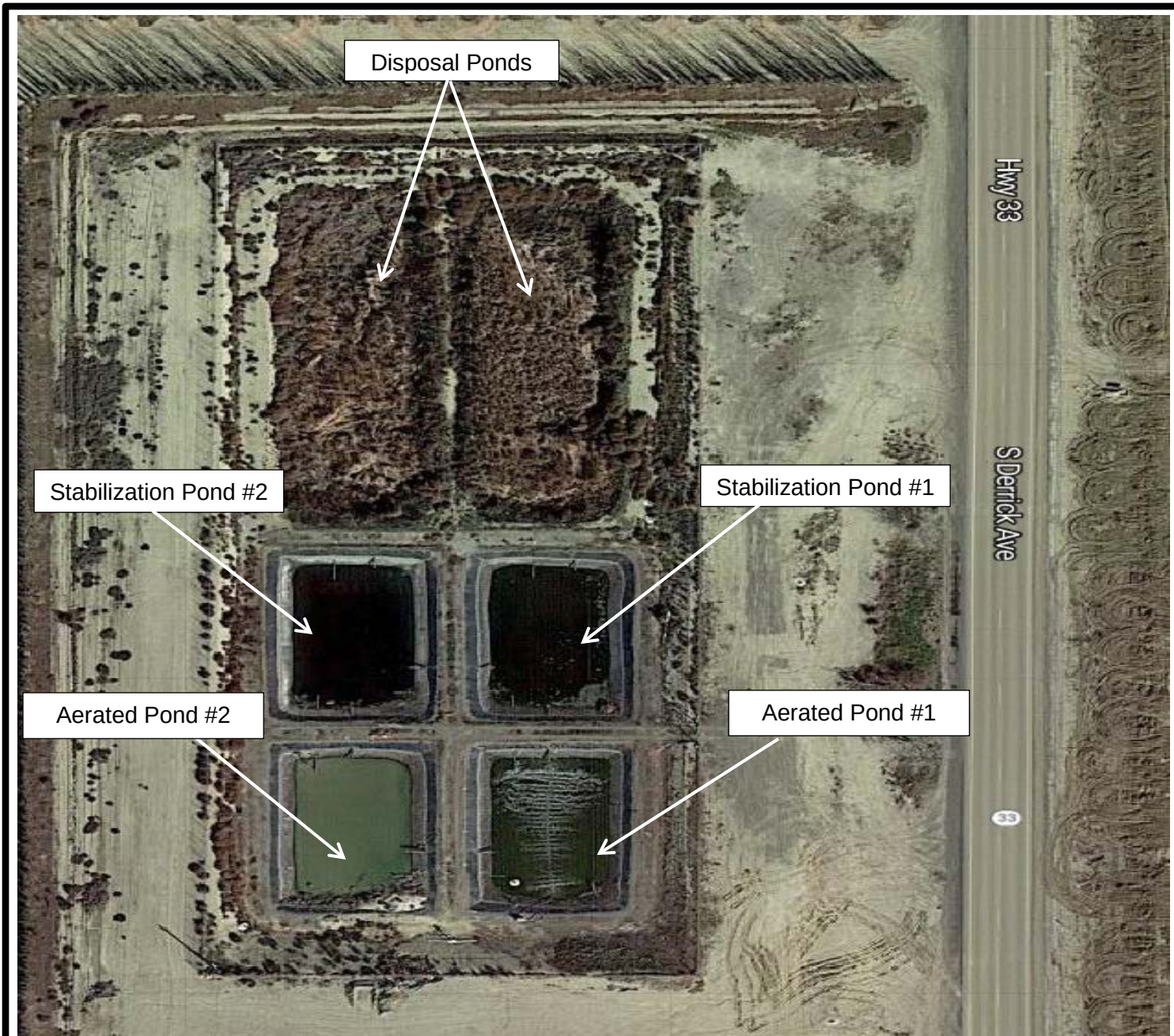
cc: Fresno County Environmental Health Services, Fresno



Drawing Reference:
Google Earth Map Data © 2018

SITE MAP
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5305
FOR
FRESNO COUNTY SERVICE AREA #30
EL PORVENIR WASTEWATER TREATMENT SYSTEM
FRESNO COUNTY

ATTACHMENT A



Drawing Reference:
Google Earth Map Data © 2018



1 inch = 50 Feet
Approximate Scale

WASTEWATER TREATMENT FACILITY
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5305
FOR
FRESNO COUNTY SERVICE AREA #30
EL PORVENIR WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

ATTACHMENT B

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 2014-0153-DWQ-R5305

FOR

FRESNO COUNTY SERVICE AREA #30
EL PORVENIR WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

This Monitoring and Reporting Program (MRP) describes requirements for monitoring a wastewater treatment system. This MRP is issued pursuant to Water Code section 13267. Fresno County Service Area #30 (Discharger) shall not implement any changes to this MRP unless and until a revised MRP is issued by the Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board) or Executive Officer.

Water Code section 13267 states, in part:

“In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports.”

Water Code section 13268 states, in part:

“(a)(1) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of section 13267, or failing or refusing to furnish a statement of compliance as required by subdivision (b) of section 13399.2, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with article 2.5 (commencing with section 13323) of chapter 5 for a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs.”

The Discharger owns and operates the wastewater treatment and disposal systems for the El Porvenir Wastewater Treatment Facility (WWTF) that is subject to the Notice of Applicability (NOA) of Water Quality Order 2014-0153-DWQ-R5305. The reports are necessary to ensure that the Discharger complies with the NOA and General Order. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

All samples shall be representative of the volume and nature of the discharge or matrix of material sampled. The name of the sampler, sample type (grab or composite), time, date, location, bottle type, and any preservative used for each sample shall be recorded on the sample chain of custody form. The chain of custody form must also contain all custody information including date, time, and to whom samples were relinquished. If composite samples are collected, the basis for sampling (time or flow weighted) shall be approved by Central Valley Water Board staff.

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used provided that they are used by a State Water Resources Control Board, Environmental Laboratory Accreditation Program (ELAP) certified laboratory, or:

1. The user is trained in proper use and maintenance of the instruments;
2. The instruments are field calibrated prior to monitoring events at the frequency recommended by the manufacturer;
3. Instruments are serviced and/or calibrated by the manufacturer at the recommended frequency; and
4. Field calibration reports are maintained and available for at least three years.

If monitoring consistently shows no significant variation in magnitude of a constituent concentration or parameter after at least 12 months of monitoring, the Discharger may request this MRP be revised to reduce monitoring frequency. The proposal must include adequate technical justification for reduction in monitoring frequency.

POND SYSTEM MONITORING

Influent Monitoring

Influent samples shall be taken from a location that provides representative samples of the wastewater and flow rate prior to entering the treatment ponds. At a minimum, influent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Flow Rate	gpd	Meter ¹	Continuous	Quarterly
Electrical Conductivity	µmhos/cm	Grab	Monthly	Quarterly
Total Nitrogen	mg/L	Grab	Annually ²	Annually

gpd denotes gallons per day; µmhos/cm denotes micromhos per centimeter; mg/L denotes milligrams per liter

^{1.} Flow rate may be metered or estimated based on potable water supply readings or other approved method. Basis for the estimate should be provided in quarterly monitoring reports.

^{2.} Annual sampling shall be conducted during the third quarter (July – September) unless otherwise specified.

Effluent Monitoring

Effluent samples shall be taken from a location that provides representative samples of the wastewater after treatment in the aeration and settling ponds, but prior to discharge into the disposal ponds. At a minimum, effluent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
pH	s.u.	Grab	Monthly	Quarterly
Electrical Conductivity	µmhos/cm	Grab	Monthly	Quarterly
Biochemical Oxygen Demand	mg/L	Grab	Monthly	Quarterly
Total Nitrogen	mg/L	Grab	Annually ¹	Annually

s.u. denotes standard units; µmhos/cm denotes micromhos per centimeter; mg/L denotes milligrams per liter.

¹ Annual sampling shall be conducted during the third quarter (July -September) unless otherwise specified.

Wastewater Pond Monitoring

All wastewater treatment and disposal ponds (lined and unlined) shall be monitored as specified below:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Dissolved Oxygen	mg/L	Grab	Weekly	Quarterly
Freeboard	0.1 feet	Measurement	Monthly	Quarterly
Odors	--	Observation	Monthly	Quarterly
Berm condition	--	Observation	Monthly	Quarterly

mg/L denotes milligrams per liter.

SOLIDS DISPOSAL MONITORING

The Discharger shall report the handling and disposal of all solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater system. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, solids, etc.), and reported analytical or visual inspection results are readily discernible. The data shall be summarized to clearly illustrate compliance with the General Order and NOA as applicable. The results of any monitoring done more frequently than required at the locations specified in the MRP shall be reported in the next regularly scheduled monitoring report and shall be included in calculations as appropriate.

The Central Valley Water Board has gone to a Paperless Office System. All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the appropriate Regional Water Board office, in this case 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office: Program: Non-15, WDID: 5D100102001, Facility Name: El Porvenir WWTF, Place ID: 201073, Order-2014-0153-DWQ-R5305.

A. Quarterly Monitoring Reports

Quarterly reports shall be submitted to the Central Valley Water Board on the **first day of the second month after the quarter ends** (e.g. the January-March Quarterly Report is due by May 1st). The reports shall bear the certification and signature of the Discharger's authorized representative. At a minimum, the quarterly reports shall include:

1. Results of all required monitoring.
2. A comparison of monitoring data to the discharge specifications, biochemical oxygen demand effluent limits, disclosure of any violations of the NOA and/or General Order, and an explanation of any violation of those requirements. (Data shall be presented in tabular format.)
3. Copies of all laboratory analytical report(s) and chain of custody form(s) for in-house and contracted laboratory analyses.

B. Annual Report

Annual Reports shall be submitted to the Central Valley Water Board by **February 1st following the monitoring year**. The Annual Report shall include the following:

1. Tabular and graphical summaries of all monitoring data collected during the year.
2. An evaluation of the performance of the wastewater treatment system, including discussion of capacity issues, nuisance conditions, system problems, and a forecast of the flows anticipated in the next year. A flow rate evaluation, as described in the General Order (Provision E.2.c), shall also be submitted.
3. If requested by staff, copies of laboratory analytical report(s) and chain of custody form(s).
4. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
5. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
6. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

The Discharger shall begin implementation of the above monitoring program upon rescission of WDRs Order 90-262.

Ordered by:

for Clay L. Rodgers
PATRICK PULUPA, Executive Officer
3/13/19
DATE

Central Valley Regional Water Quality Control Board

TO: Scott J. Hatton 
Supervising Water Resource Control Engineer

FROM: Alexander S. Mushegan
Senior Water Resource Control Engineer
RCE 84208

Kathleen Carpenter
Engineering Geologist
PG 8014

DATE: 13 March 2019

SUBJECT: **APPLICABILITY OF COVERAGE UNDER STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ-R5305; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; FRESNO COUNTY SERVICE AREA # 30; EL PORVENIR WASTEWATER TREATMENT FACILITY; FRESNO COUNTY**



On 7 December 2009 Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff received a Report of Waste Discharge (RWD) from Fresno County Service Area #30 (Discharger) to address upgrades made at its El Porvenir Wastewater Treatment Facility (WWTF), which serves the unincorporated community of El Porvenir/Three Rocks consisting of about 56 residences in Fresno County. The RWD included a Form 200 and technical report prepared and signed by Alan deHaai, a California registered civil engineer (RCE 54062) with Provost and Pritchard Consulting Group. In addition, Central Valley Water Board staff conducted an inspection of the wastewater treatment facility (WWTF) on 14 November 2018 to observe the setting and condition of the upgraded WWTF.

This memorandum provides a summary of Central Valley Water Board staff's review of the RWD and applicability of this discharge to be covered under the State Water Resources Control Board WQ Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order).

BACKGROUND INFORMATION

The Discharger owns and operates the WWTF at El Porvenir approximately 13 miles southwest of the City of San Joaquin and 17 miles south of Mendota in Fresno County. The WWTF is regulated by Waste Discharge Requirements (WDRs) Order 90-262 that allows for an average dry-weather discharge of up to 50,000 gallons per day (gpd) to two evaporation/percolation ponds.

According to the 2009 RWD, upgrades at the WWTF, completed in 2007, included reconfiguring one of the percolation/evaporation ponds to create four ponds (two aerated ponds and two settling ponds). The four ponds were lined with a single layer 36-mil geomembrane liner. After the reconfiguration, the remaining existing percolation/evaporation pond was designated as an unlined disposal pond. In 2012 the disposal pond was divided in half by an internal berm to allow for better management and maintenance of the pond. Due to low flows at the WWTF, effluent is discharged to the disposal ponds only once or twice a month causing continuous wetting and drying cycles. In addition, effluent flows to the disposal ponds are periodically switched to allow cycling between ponds to allow for maintenance.

After changes to the WWTF in 2007, the disposal capacity of the system was reduced to about 44,000 gpd. However, estimated average daily flows for the WWTF are well below the capacity of the system at about 13,700 gpd. An effluent sample collected during the inspection on 14 November 2018 reported a biochemical oxygen demand (BOD) of 33 mg/L, electrical conductivity of 1,100 umhos/cm, total dissolved solids of 640 mg/L, and total nitrogen of 55 mg/L (nitrates [as N] of 0.15 mg/L, total Kjeldahl nitrogen of 55 mg/L).

POTENTIAL THREAT TO WATER QUALITY

Water for the community is surface water from the California Aqueduct supplied by Westlands Water District. There is one community well (Well No.1). However, Well No. 1 has been inactive for several years. The nearest portion of the WWTF to Well No.1 and the California Aqueduct are approximately 800 feet and 1.5 miles, respectively. These distances meet the setback requirements for impoundment of undisinfected secondary recycled water from *Table 3: Summary of Wastewater System Setbacks* of the General Order.

Based on recent United States Department of Agriculture (USDA) soil surveys, percolation rates for surface soils in the area of the WWTF are around 105 minutes per inch (min/in). According to *Table 5: Minimum Depth to Groundwater and Minimum Soil Depth from the Bottom of the Dispersal System*, in the General Order, the minimum depth to groundwater requirement for percolation rates between 30 min/in and 120 min/in is 5 feet below surface grade (bsg). Depth-to-groundwater in the area is greater than 400 feet bsg, based on data from Department of Water Resource (DWR) maps of the area.

Current flows at the WWTF are estimated at about 13,700 gpd (based on 56 connections and an estimated population of 2.5 persons per dwelling unit). According to the Discharger, due to limits on water service for the community, there is no expectation that flows to the WWTF will increase in the near future. In accordance with the requirements in the General Order, discharges with flow rates less than 20,000 gpd are not required to meet a nitrogen effluent limitation. Nevertheless, based on soil and groundwater data for the area, waste characterization, treatment in lined ponds, and cycling of the disposal ponds, a nitrogen effluent evaluation for the site, in accordance with Attachment 1 in the General Order, indicates that a nitrogen effluent limitation is not applicable even if flows exceed 20,000 gpd.

BASIN PLAN REQUIREMENTS

The *Water Quality Control Plan for the Tulare Lake Basin*, Third Edition, revised May 2018 (Basin Plan) specifies effluent limitations for discharges of domestic wastewater to land in section 4.1.11.5 of the Basin Plan. For advanced primary treatment, the Basin Plan requires 60 to 70 percent removal or reduction to 70 mg/L, whichever is more restrictive, for both biochemical oxygen demand (BOD) and suspended solids. The Basin Plan states that advanced primary treatment is

“satisfactory for smaller facilities in outlying or remote areas where the potential for odors and other nuisances are low”.

General Order, Finding 6 states, in part:

[The] General Order requires Dischargers to comply with all applicable Basin Plan Requirements, including any prohibitions and/or water quality objectives, governing the discharge. The Discharger must comply with any more stringent standards in the applicable Basin Plan. In the event of a conflict between the requirements of this General Order and the Basin Plan, the more stringent requirement prevails.

The BOD effluent limitation in the Basin Plan of 70 mg/L is more restrictive than the BOD effluent limitation specified in the General Order of 90 mg/L for a wastewater pond system. Therefore, the more stringent effluent limitation will apply.

MONITORING REQUIREMENTS

Monitoring requirements included in the following sections from Attachment C of the General Order are appropriate for this discharge:

- Pond System Monitoring, and
- Solids Disposal Monitoring.

CV-SALTS

The Central Valley Water Board adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting. These programs, once effective, could change how the Central Valley Water Board permits discharges of salts and nitrates.